

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Thomas Juliano	Team: Squad #12	CCRB Case #: 201608578	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 10/03/2016 3:30 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 4/3/2018	Precinct: 113		
Date/Time CV Reported Mon, 10/03/2016 6:10 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 10/11/2016 1:02 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Arlene Quinones	22710	947372	SRG 4
2. POM Omar Galindo	13717	943266	SRG 4

Officer(s)	Allegation	Investigator Recommendation
A . POF Arlene Quinones	Abuse: Police Officer Arlene Quinones stopped § 87(2)(b)	A . Exonerated
B . POM Omar Galindo	Abuse: Police Officer Omar Galindo stopped § 87(2)(b)	B . Exonerated
C . POM Omar Galindo	Discourtesy: Police Officer Omar Galindo spoke discourteously to § 87(2)(b)	C . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On October 3, 2016, § 87(2)(b) filled a complaint with IAB. On October 11, 2016, the complaint was received at the CCRB.

On October 3, 2016, at 3:30 p.m., § 87(2)(b) § 87(2)(b) in Queens, walked to a deli on the corner and purchased a beer to obtain change for his customer. The beer was placed into a brown paper bag. While walking back to his barbershop § 87(2)(b) was approached by PO Quinones and PO Galindo and questioned about the beer in the brown paper bag. § 87(2)(b) showed the officers that the beer was closed; however, they continued to detain him (**Allegations A and B**). During the interaction, PO Galindo stated to § 87(2)(b) “Fuck you, I’m not going anywhere, I can do what I want to do” (**Allegation C**). § 87(4-b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

No arrests or summonses resulted from this incident.

There is a surveillance video from the barbershop of the incident. There is also a cellphone recording of the incident.



Surveillance Video.mp4



Cellphone Video.mp4

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate § 87(2)(b)
 - As of December 13, 2016, § 87(2)(b) has not filed a notice of claim with the Comptroller’s Office. (**Board Review 1**)
 - [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- § 87(2)(b)
- § 87(2)(b)

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed seven CCRB complaints. § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b)
- PO Quinones has been a member of the NYPD for eight years. PO Quinones has no substantiated CCRB complaints. § 87(2)(g)
 - PO Galindo has been a member of the NYPD for nine years. PO Galindo has no substantiated CCRB complaints. § 87(2)(g)

Findings and Recommendations

Allegation A –Abuse: Police Officer Arlene Quinones stopped § 87(2)(b)

Allegation B –Abuse: Police Officer Omar Galindo stopped § 87(2)(b)

It is undisputed that § 87(2)(b) was stopped under the suspicion of an open container of alcohol. It is undisputed that § 87(2)(b) was questioned about having an open container. It is also undisputed that § 87(2)(b)'s beer was in a brown paper bag.

Surveillance video shows the entirety of the interaction between the officers and § 87(2)(b). At 02:15 the officers are seen exiting the marked vehicle. At 02:41 § 87(2)(b) who is standing on the curb, raises his arm towards the officers, who are standing in the street, while holding a bottle in a bag in his right arm and turns it upside down. At 02:43, PO Galindo approaches § 87(2)(b) and touches the bottle. § 87(2)(b) is seen making a twisting motion on the top of the bottle with his left hand. § 87(2)(b) then walks onto the sidewalk and the police officers continue to approach § 87(2)(b) stepping first from the street onto the sidewalk, then from the sidewalk to the front of § 87(2)(b)'s barbershop. § 87(2)(b) walks into the barbershop. The officers stand outside of § 87(2)(b)'s business for approximately thirty seconds before walking to their vehicle and leaving, which is at 05:00 in the recording.

§ 87(2)(b) stated that PO Quinones and PO Galindo stopped him for carrying a beer, which was sealed and in a brown paper bag. Furthermore, § 87(2)(b) stated that he immediately showed them was closed by turning the beer upside down and twisting the top, and that PO Galindo then requested to hold the beer. § 87(2)(b) stated that the officers followed him when he attempted to leave after he showed them that it was closed. **(Board Review 4)**

PO Quinones, who was a passenger in the marked police car, stated that after observing § 87(2)(b) for two seconds she decided to stop him under the suspicion of an open container. Although the beer was inside of a brown paper bag, PO Quinones recognized a 1" label that was wrapped around the neck of the bottle, which was sticking out of the bag, as that of a Corona bottle. § 87(2)(b) had his thumb over the beer, so she could not see if it was closed or open before stopping him. PO Quinones asked § 87(2)(b) if the bottle was an open container of alcohol but did not receive an answer. PO Quinones realized that the beer was closed soon after she stopped § 87(2)(b) because he was moving his arms in a manner that would have spilt it. However, she did not leave § 87(2)(b) alone because he was venting and she wanted to make him feel better about the interaction. § 87(2)(b) did not request to be left alone. PO Quinones stated that she did not have any other reason to suspect criminality of § 87(2)(b) **(Board Review 5)**

PO Galindo stated that after observing § 87(2)(b) for two seconds he decided to pull over the marked police car to stop him under the suspicion of an open container. Although the beer was inside of a brown paper bag, PO Galindo recognized the bottle as a beer bottle because of his life experience. PO Galindo did not acknowledge any other reason for suspecting that the bottle was an open container of alcohol. PO Galindo stated that § 87(2)(b) had his hand wrapped around the top of the beer and that he could not determine if it was open or closed before stopping § 87(2)(b). PO Galindo asked § 87(2)(b) if the bottle was an open container of alcohol, however, PO Galindo never learned if the beer was open or closed as he never received an answer from § 87(2)(b) never saw the top of the beer, and § 87(2)(b) did not make any motions indicating that the beer was sealed. PO Galindo stated that he did not reach out and touch the beer. PO Galindo did not have any other reason to suspect criminality of § 87(2)(b) **(Board Review 6)**

PO Galindo was shown the surveillance video evidence. PO Galindo was shown 02:40, which shows § 87(2)(b) extending his arm and tilting the beer and PO Galindo approaching § 87(2)(b). PO Galindo was still unsure at this moment if the beer was open. PO Galindo stated that he followed § 87(2)(b) onto the sidewalk

after § 87(2)(b) turned the beer upside down because he always goes onto the sidewalk for safety purposes. PO Galindo stated that he again followed § 87(2)(b) to the front of the barbershop because he was just walking around in a casual manner. PO Galindo was shown the cellphone video evidence of the incident. PO Galindo acknowledged that § 87(2)(b) did request to be left alone, however he did not end the interaction because he was still trying to determine if the beer was open. PO Galindo stated that he did not notice that the beer was sealed because § 87(2)(b) was yelling and angry, and that he was focusing on his and his partner's safety rather than the investigation at this point.

§ 87(2)(g)

People v. DeBour 40 N.Y.2d 201 (1976) states that an officer is allowed to conduct a forcible stop of a person if the officer has reasonable suspicion of criminality. **(Board Review 8)**

An officer has reasonable suspicion to suspect that an individual has an open container if he or she observes an individual carrying a beverage wrapped in a paper bag and held in such a manner as to avoid spillage. United States v. Singletary, 37 F. Supp. 3d 601, 2014 U.S. Dist. **(Board Review 7)**

Rodriguez v. United States 135 S.Ct. 1609 (2015), states that a police stop exceeding the time needed to complete the mission for which the stop was made violates the Constitution's shield against unreasonable seizures. **(Board Review 14)**

§ 87(2)(g)

It is therefore recommended by the preponderance of the evidence that **Allegations A and B** be **Substantiated**.

Allegation E–Discourtesy: Police Officer Omar Galindo spoke discourteously to § 87(2)(b)

§ 87(2)(b) testified that when he told PO Galindo to leave him alone that PO Galindo responded, “Fuck you, I’m not going anywhere, I can do what I want to do.”

PO Galindo stated that he never said to § 87(2)(b) “Fuck you, I’m not going anywhere, I can do what I want to do.” Furthermore, PO Galindo stated that he did not use profanity with § 87(2)(b) at any point of the interaction.

PO Quinones stated that she did not recall PO Galindo say to § 87(2)(b) ““Fuck you, I’m not going anywhere, I can do what I want to do.” Furthermore, PO Quinones stated that PO Galindo did not use profanity at any point of the interaction.

The video evidence does not show the use of discourteous language.

§ 87(2)(g)

It is therefore recommended that § 87(2)(b) be closed as **unsubstantiated**.

§ 87(4-b) § 87(2)(g)

§ 87(4-b) § 87(2)(g)

[Redacted text block]

Squad: 12

Investigator:	_____	<u>Thomas Juliano</u>	_____
	Signature	Print	Date
Squad Leader:	_____	<u>Lily Carayannis</u>	_____
	Title/Signature	Print	Date